Civil Resolution Tribunal

Date Issued: January 9, 2019

File: SC-2018-002688

Type: Small Claims

Civil Resolution Tribunal

Indexed as: *JPP TRANSPORT LTD v. Rock N Roll Xpress Ltd.*, 2019 BCCRT 44

B E T W E E N :

JPP TRANSPORT LTD

**APPLICANT**

A N D :

Rock N Roll Xpress Ltd.

**RESPONDENT**

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**REASONS FOR DECISION**

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Tribunal Member: Kate Campbell

**INTRODUCTION**

1. The applicant, JPP TRANSPORT LTD, says the respondent, Rock N Roll Xpress Ltd., failed to pay for a load hauled from Ontario to Alberta. The applicant seeks payment of $4,200, plus contractual interest.

2. The respondent says it is not obligated to pay because the applicant missed 2 delivery appointments.

3. The applicant is represented by an employee, Satpal Girn. The respondent is represented by an employee or principal, Jack Gill.

## JURISDICTION AND PROCEDURE

4. These are the formal written reasons of the Civil Resolution Tribunal (tribunal). The tribunal has jurisdiction over small claims brought under section 118 of the *Civil Resolution Tribunal Act* (Act). The tribunal's mandate is to provide dispute resolution services accessibly, quickly, economically, informally, and flexibly. In resolving disputes, the tribunal must apply principles of law and fairness, and recognize any relationships between parties to a dispute that will likely continue after the dispute resolution process has ended.

5. The tribunal has discretion to decide the format of the hearing, including by writing, telephone, videoconferencing, email, or a combination of these. In the circumstances here, I find that I am properly able to assess and weigh the documentary evidence and submissions before me. Further, bearing in mind the tribunal's mandate that includes proportionality and a speedy resolution of disputes, I find that an oral hearing is not necessary. I also note that in *Yas v. Pope*, 2018 BCSC 282 at paragraphs 32 to 38, the BC Supreme Court recognized the tribunal's process and found that oral hearings are not necessarily required where credibility is in issue.

6. The tribunal may accept as evidence information that it considers relevant, necessary and appropriate, whether or not the information would be admissible in a court of law. The tribunal may also ask questions of the parties and witnesses and inform itself in any other way it considers appropriate.

7. Under tribunal rule 126, in resolving this dispute the tribunal may: order a party to do or stop doing something, order a party to pay money, or order any other terms or conditions the tribunal considers appropriate.

## ISSUES

8. The issue in this dispute is whether the respondent owes the applicant $4,200 plus interest, for freight hauling.

## EVIDENCE AND ANALYSIS

9. In a civil claim such as this, the applicant bears the burden of proof, on a balance of probabilities. I have only addressed the evidence and arguments to the extent necessary to explain my decision.

10. The documents in evidence show that the applicant picked up the load on September 29, 2017 in Ontario, and dropped it off in Alberta on October 5, 2017. The load consisted of around 10,000 pounds of “general freight”. The applicant’s invoice and the respondent’s load confirmation form both show that the agreed charge for this service was $4,200.

11. The respondent says it paid $3,047 towards the invoice, and withheld the rest because the applicant missed the agreed delivery date, then missed a second rescheduled delivery date. As discussed below, the parties’ alleged agreed date was not specified. The respondent says it had to pay for extra crane costs, as the unloading crane was rescheduled twice due to these delays.

12. The respondent says $2,306 in crane costs were charged back to it by its client, so it deducted half of the chargeback amount from its payment of the applicant’s bill. However, the respondent did not provide any evidence about the crane costs, such as an invoice, receipt, information from its client, or the name of the client. Since the crane costs are unsubstantiated, I am not persuaded by this argument that the applicant should bear any costs for the crane services.

13. Ms. Girn, on behalf of the applicant, says she received the respondent's cheque for $3,047 after the Dispute Notice was filed. The respondent put a stop payment on this cheque, so I find it is not determinative of this dispute.

14. The respondent says the applicant was contractually obligated to deliver the load by a specific date. I do not agree. First, none of the documents before me show what date the load was supposed to be delivered. The respondent's load confirmation form says the carrier must meet the delivery date specified on the form. However, the form does not specify a delivery date. The space for "delivery date" on the form was left blank. The applicant's bill of lading also does not specify a delivery date.

15. The bill of lading from Trylon, the original shipper, specifies a delivery date of October 2. However, that document is an agreement between Trylon and the respondent. The applicant is not mentioned on that form, which was created before the applicant picked up the load. I find that Trylon's bill of lading did not create a contractual obligation for the applicant to deliver the load by October 2.

16. I note that the applicant's October 2, 2017 email to the respondent admits that the load was delayed, which indicates there was an agreement to deliver the load before October 5. However, I find there is no contractual provision that entitles the respondent to withhold payment of any portion of the applicant's invoice due to that delay. As previously stated, since there was no delivery date specified on the load confirmation form, so that document does not permit any deduction from payment.

17. The respondent provided a copy of an unsigned, undated contract entitled, "Broker & Carrier Agreement". The respondent says that under this contract, it can deduct money for being late or missing a crane appointment. However, I find the contract provided by the respondent does not bind the applicant. The contract includes blank spaces for dates, the name and address of the carrier, and signatures from the respondent and the carrier's authorized representative. Because the contract is blank, the applicant is not named anywhere on it. Thus, the applicant is not a party to that contract. There is no evidence before me to establish that the applicant was

provided a copy of this contract before the load was carried. For these reasons, I find the respondent's blank contract is not binding on the applicant.

18. The respondent's load confirmation form says that the load confirmation terms are subject to the respondent's "General Terms and Broker Agreement". However, the contract provided in evidence is not titled "General Terms and Broker Agreement", and is not drafted as a generic agreement setting out the respondent's expectations for its carriers. Rather, the respondent's contract anticipates signatures and specific consent by an authorized representative of each specific carrier. Since no such signatures were provided, I find the applicant is not a party to that contract. While the load confirmation form specifies that it is binding even if unsigned, I find that provision does not apply to the blank contract provided by the respondent. For a contract to be binding, both parties have to understand its content and agree to it. There is no evidence before me indicating that the applicant agreed to the terms set out in the respondent's blank contract.

19. I agree with the respondent that the engine trouble the applicant used to explain its delay is unconvincing, since the repair invoice it provided showed routine maintenance that could have been provided elsewhere. However, I find the applicant delivered the load as required under the documentation provided in evidence. Based on the evidence before me, I find that a 3 day delay from October 2 to October 5 is not, on its own, so unreasonable as to violated an implied term of reasonable delivery. Also, I again note the respondent provided no evidence to substantiate its claim of crane costs, so I find it is not entitled to offset these costs by deducting from the invoice.

20. For all of these reasons, I find the respondent must pay the applicant $4,200 for hauling. The applicant also claims 2% contractual interest. Its October 5, 2017 invoice says 2% annual interest will be charged on overdue invoices. I therefore find the applicant is entitled to 2% annual interest from November 5, 2017. This equals $98.96.

21. Under section 49 of the Act, and tribunal rules, the tribunal will generally order an unsuccessful party to reimburse a successful party for tribunal fees and reasonable dispute-related expenses. I see no reason in this case not to follow that general rule. I find the applicant is entitled to reimbursement of $175. The applicant also claims $60 for a company search performed in order to serve the Dispute Notice on the respondent. This amount is reasonable and I order the respondent to reimburse it.

**ORDERS**

22. I order that within 30 days of the date of this decision, the respondent pay the applicant a total of $4,533.96, broken down as follows:

    a. $4,200 for its invoice

    b. $98.96 in contractual interest, and

    c. $235 for tribunal fees and dispute-related expenses.

23. The applicant is entitled to post-judgment interest under the *Court Order Interest Act*, as applicable.

24. Under section 48 of the Act, the tribunal will not provide the parties with the Order giving final effect to this decision until the time for making a notice of objection under section 56.1(2) has expired and no notice of objection has been made. The time for filing a notice of objection is 28 days after the party receives notice of the tribunal's final decision.

25. Under section 58.1 of the Act, a validated copy of the tribunal's order can be enforced through the Provincial Court of British Columbia. A tribunal order can only be enforced if it is an approved consent resolution order, or, if no objection has been made and the time for filing a notice of objection has passed. Once filed, a tribunal order has the same force and effect as an order of the Provincial Court of British Columbia.

Kate Campbell, Tribunal Member